

[REDACTED]

JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION

1. Identification of Agency and Contracting Activity.

The Requiring Agency is Commander, Naval Surface Forces (COMNAVSURFFOR)
Naval Surface Forces (COMNAVSURFFOR)
2841 Rendova Road
San Diego, CA 92155

The Contracting Activity is NAVSUP FLC San Diego
NAVSUP Fleet Logistics Center San Diego (NAVSUP FLCSD)
Regional Contract DEPT. Code 230
3985 Cummings Road
San Diego, CA 92136-4201

2. Description of the Action Being Approved.

This justification authorizes and approves a Cost-Plus Fixed Fee (CPFF) Bridge contract for three months to temporarily extend performance of services provided by Orbis Sibro, Inc., 238 Albemarle Rd., Charleston, SC 29407-7522. The services are provided in support Commander Naval Surface Forces is essential mission, which is to provide administrative and availability work package management support to Commander Naval Surface Forces, U.S Pacific Fleet (COMNAVSURFPAC) Headquarters and Commander Naval Surface Forces, U.S Atlantic Fleet (COMNAVSURFLANT) Headquarters, geographically located in San Diego, CA and Norfolk, VA respectively.

3. Description of Supplies/Services.

This CPFF Bridge contract will provide continued administrative and availability work package management support services to COMNAVSURFPAC and COMNAVSURFLANT in San Diego, CA, Norfolk, VA and Mayport, FL. The services being provided by the current contractor (Orbis Sibro, Inc) include assisting with the development, scheduling, planning, and tracking of surface ship depot level maintenance and modernization work. Additionally, the contractor provides support for planning and execution of Fleet alterations; produces deferral letters for TYCOM in support of mandatory assessments or mandatory work; collaborates with maintenance and modernization community stakeholders to ensure that all Mandatory Technical Requirements (MTRs) trade-off decisions are captured in TYCOM deferral letters; document decisions and discussions in After Action Reports (AARs); and review cost estimates for planned repairs and alterations for surface ships, including via submitted Business Case Analysis (BCA). This bridge contract allows COMNAVSURFFOR (the TYCOM) to meet its demand for services between the end of the current contract on 31 Jan 2025 and the competitive follow-on task order with an award anticipated on or before 30 April 2025. This bridge will include a up to a one-month base period of performance (POP) and two one -month option periods. The estimated value of this contract is \$1,169,715.00 and it will be funded with FY25 Operations and Maintenance Navy (O&M, N) funding.

Period of Performance	Estimated Cost
01 February 2025 to 28 February 2025	\$389,905.00
01 March 2025 to 31 March 2025	\$389,905.00

01 April 2025 to 30 April 2025	\$389,905.00
Total Estimated Cost	\$1,169,715.00

4. Statutory Authority Permitting Other Than Full and Open Competition.

10 U.S.C 3204(a)(2) as implemented by FAR 6.302-2, Unusual and compelling urgency. FAR 6.302-2, authorizes the use of noncompetitive procedures when the agency's need for the supplies or services is of such an unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals.

5. Rationale Justifying Use of Cited Statutory Authority.

A bridge contract extension is necessary to ensure continued support to COMNAVSURFOR, while the government works on the follow-on contract that was delayed as result of unforeseen critical changes to the work scope. At this time, restricting competition is necessary because the incumbent contractor, Orbis Sibro, Inc., is the only contractor with the required resources and staffing currently available to avoid a lapse in service for this critical program before the current contract expires on 31 January 2025.

This bridge will provide the necessary time for FLC San Diego, working with the customer's technical team, to complete the necessary requirements for the follow-on award, including preparation and release of the solicitation that reflects the COMNAVSURFOR current requirements.

A break in service would have a severe impact to critical TYCOM availability planning mission for surface ships in both the Pacific Fleet and Atlantic Fleet operating areas. This requirement funds approximately 27 full time equivalent contractor employees performing administrative support services at both the COMNAVSURFPAC and COMNAVSURFLANT Type Commander Headquarters. The Government does not possess the organic manpower to perform these service requirements and a break in contract services is unacceptable due to the resulting inability of the respective TYCOM's to complete the administrative planning process for surface ship availabilities. Uninterrupted contract performance is essential to effectively complete the necessary milestones required to execute surface ship availabilities and ensure the TYCOM priorities are conveyed to the broader maintenance community. The impact to the TYCOM and Navy mission is amplified by the number of contractor personnel assigned to this contract. Approval of this sole source is critical to avoid a detrimental impact to the fleet which includes loss of Surface ship availability planning, administrative efficiency and communication among the maintenance team stakeholders and will result in delayed processing of Availability Deferral Letters and Lock Letters. This would lead to gap in service and potential mission failure in meeting crucial Joint Fleet Maintenance Manual (JFMM) availability milestones, such as the lack of the maintenance package, solicitation and award of the availability contract. This interruption will significantly impact the Surface Ship availabilities start and ending scheduling and greatly increase overall availability costs due to a loss of planning efficiency. Finally, the overall end result is the decrease in U.S. Navy Surface Ships deployment training and readiness which would lead to a degraded U.S. Navy readiness to threats throughout the world.

In accordance with FAR 6.302-2(b), an unusual and compelling urgency precludes full and open competition; and delay in award of a contract would result in serious injury, financial or other, to the Government. For the reasons discussed above, there is not enough lead-time to complete solicitation package for competitive acquisition at this time. The incumbent contractor, Orbis Sibro, Inc., is the only

contractor with the necessary resources and staffing currently available to avoid a detrimental lapse in service for this critical program.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

Obtaining competitive offers for the bridge would require a similar evaluation of multiple proposals, which would defeat the purpose of this urgent contract and the cited unusual and compelling urgency. Due the imminent expiration of the existing contract, the only viable option to avoid lapse in services is to award a sole source contract to the incumbent, Orbis Sibro, Inc., to allow for the proper evaluation of proposals under the competitive solicitation.

However, the government is continuing its efforts to award the competitive follow-on task order. The follow-on contract will offer a long-term, competitive, solicitation that will be available to as many offers as practical. Based on extensive market research and a sources sought notice posted on SeaPort NxG, there are several capable small businesses that can perform the requirement. The government is confident that a long-term contract will be awarded based on competitive proposal evaluations.

7. Determination of Fair and Reasonable Cost.

A determination of fair and reasonableness of price will be based on the Contracting Officer's cost and price analysis of the contractor's proposal in accordance with FAR15.404-1.

8. Actions to Remove Barriers to Future Competition.

No actions have been taken to remove barriers to competition as stated in paragraphs 5 and 6, this is a one-time sole source bridge contract that must be awarded to the incumbent to avoid a lapse in services. Competing this bridge effort would require a lengthy evaluation period and transition, which defeats the purpose of this J&A. Additionally, the follow-on contract award will be the result of a competitive solicitation.

CERTIFICATION AND APPROVAL
TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are completed and accurate to the best of my knowledge and belief:

Technical Cognizance:

 _____	 _____	 _____	 _____
Signature	Printed Name	Phone Number	Date

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

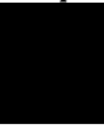
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Signature	Printed Name	Phone Number	Date

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

 _____	 _____	 _____	 _____
Signature	Printed Name	Phone Number	Date

Upon the basis of the above Justification, I hereby approve, as the Competition Advocate, the solicitation of the proposed procurement described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(2) as implemented by FAR 6.302-2, Unusual and compelling urgency.

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Signature	Printed Name	Phone Number	Date